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| 9.                                     | 25CV0607 | GULINSKY v. PHILLIPI |
| Determination of Good Faith Settlement |          |                      |

Defendants Aaron L. Phillippi and Heather Mae Phillippi (collectively “the Phillipsis”) have brought this Motion before the Court for an Order of Determination of Good Faith Settlement of the Complaint filed against them by Plaintiffs Stas Gulinsky, Maryanna Kantorovich, and Filingrabbitt, LLC ("Plaintiffs"). As a result of mediation, the Phillippis will pay \$130,000 to Plaintiffs. According to the proof of service all parties were electronically served on April 7, 2026. The Motion is unopposed.

In Tech-Built v. Woodward-Clyde & Associates, the California Supreme Court addressed the good faith requirement for settlements under Section 877.6. The policies underlying the requirement, “...require that a number of factors be taken into account including a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of non-settling defendants.” Tech-Built v. Woodward-Clyde & Associates, 38 Cal.3rd 448, 499 (1985).

However, as noted in City of Grand Terrace v. Superior Court, the overwhelming majority of applications for a good faith determination are unopposed and a full factual response to all of the Tech-Built factors would be a waste of valuable time and resources. So, when no one objects, a “barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” City of Grand Terrace v. Superior Court, 192 Cal.App.3rd 1251, 1261 (1987).

In the present case, the court has reviewed the application of the Phillipsis and determined that it sets forth the basic statutory elements as required. As such, the motion for determination of good faith settlement is granted.

**TENTATIVE RULING #9: MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT IS GRANTED.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).**

**NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO**

**COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.**

**LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**

May 22, 2026  
Dept. 9  
Tentative Rulings

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| <b>11.</b>    | <b>24PR0336</b> | <b>MATTER OF YORK-NORDERHAUG</b> |
| <b>Status</b> |                 |                                  |

Parties are ordered to appear to address the pending motions in limine and address any other issues for the upcoming trial.

**TENTATIVE RULING #10: APPEARANCES REQUIRED FRIDAY, MAY 22, 2026, AT 8:30 AM IN DEPARTMENT NINE.**